

TENTATIVE RULING FOR SEPTEMBER 21, 2026

Department R12 - Judge Kory Mathewson

McCune Law Group, APC v. Patrik Bryans, et al – CIVRS2601983

Motion: Demurrer (Cross-Complaint)

Movant: Cross-Defendant McCune Law Group, APC (MLG)

Respondent: Cross-Complainant Hussna Wakily, M.D., APC

Ruling: Demurrer is SUSTAINED Without Leave to Amend. The Cross-Complaint impermissibly expands the issues for resolution in MLG's interpleader action.

McCune Law Group to provide Order and give notice.

Counsel for MLG properly met and conferred telephonically with Cross-Complainant's attorney. (Shahatto Decl. at ¶¶3-5.)

Cross-Defendant MLG argues that the entire Cross-Complaint fails to state a claim against it because it is improper in an interpleader litigation.

An interpleader action is two suits: (i) an action between the stakeholder and claimants to determine if the stakeholder has a right to interplead, and (ii) an action among the claimants to determine who shall receive the funds interpleaded. (*State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 612.) In the first suit, the claimants may only raise matters that concern whether the suit is properly one for interpleader. (*Ibid.*) In other words, a claimant cannot by a counter-complaint change the character of the action, and his only relief against the interpleader plaintiff is to have the interpleader litigation dismissed. (*Id.* at p. 613.) The Supreme Court stated the following on the issue:

The only question that can be litigated between the plaintiff and the defendants in [an interpleader] action is whether the plaintiff is entitled to compel the defendants to interplead with respect to their conflicting claims to the fund or debt alleged by plaintiff to be in his hands, or due from him. The defendants cannot litigate in the interpleader suit any other claim against the plaintiff. [Citation.] "Defendants are entitled to aver and prove any facts which show that the complainant is not entitled to maintain his bill" [citation], but they cannot, by counterclaim or cross-complaint, seek affirmative relief against the plaintiff concerning matters not embraced within his bill." [Citation.] "The only relief which a defendant can have against the plaintiff in such a suit is to have the action dismissed." (*Conner v. Bank of Bakersfield* (1917) 174 Cal. 400, 403.)

Here, the Cross-Complaint seeks to expand the issues in the interpleader litigation. First, as will be further discussed below, the Cross-Complaint is seeking to impose contractual breach liability, even though MLG has properly interpleaded the common funds that are in dispute. Second, it seeks to expand the issues on whether in the course of negotiations and attempts to resolve the dispute over Wakily's bill that MLG engaged in outrageous conduct that caused Wakily severe emotional distress.

1st cross-claim: Breach of Contract

Cross-Defendant MLG argues that the breach of contract cross-claim is improper now that it filed an interpleader action over the disputed funds. Cross-Complainant Wakily argues, however, that she is pleading an independent claim.

Upon interpleading the funds, the interpleader cannot be held accountable for continuing breach of contract or tort once he tenders the funds to the court to resolve competing claims. (*Conner v. Bank of Bakersfield* (1920) 183 Cal. 199, 206; *Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1499, 1508.) The reason being that once a interpleader deposits the at-issue money with the court, he has done all that the law requires of him. (*Conner v. Bank of Bakersfield, supra*, 183 Cal. at p. 206.)

The Cross-Complainant alleges MLG and Wakily entered into retainer agreement for her to provide professional expert services per the terms of her fee schedule. After performing her obligation of reviewing records, preparing opinions, and preparing for a deposition, she invoiced for that work. However, MLG has failed to pay her for those services. She is owed at least \$45,410 (¶¶ 12, 16-28, 36, 49, 53-57).

Contrary to Cross-Complainant's position that her breach of contract cause of action is independent, her claim is about recovering monies owed for her professional services, which is the same money that MLG has interpleaded based on Wakily is making a claim to the money and Bryans are making a claim that she is not entitled to the entirety because of overstated and/or fraudulent billing for services. An interpleader litigation's purpose is to litigate an issue of one liability when the interpleader is faced with multiple claims. (*Southern California Gas Co. v. Flannery* (2014) 232 Cal.App.4th 477, 487; *Farmers New World Life Ins. Co. v. Rees* (2013) 219 Cal.App.4th 307, 319-20.) The Cross-Complaint is asking the Court to adjudicate the interpleader's liability for monies that MLG has agreed may belong to Wakily, but also contends may belong in part to Bryans. Wakily's remedy is to challenge MLG's right to interplead and her right to the entirety of the interpleaded funds over Bryans, but not to pursue the same money under a different action.

Based on the above analysis, MLG's argument that the breach of contract cross-claim inadequately plead the legal effect of the written contract is irrelevant considering the breach of contract cross-claim seeks to impose liability on MLG that is precluded due it filing the interpleader action. Consequently, the Demurrer to the 1st cross-claim is sustained, without leave to amend.

2nd cross-claim: IIED

Like the breach of contract claim, the IIED claim too impermissibly increases the scope of the interpleader litigation. Nonetheless, the Court addresses it below.

To state an IIED claim, one must plead (1) outrageous conduct by the defendant, (2) intentional or reckless causing emotional distress, (3) severe emotional distress, and (4) causation. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) Outrageous conduct is conduct that is so extreme it exceeds all bounds that are usually tolerated in a civilized community, beyond all possible bounds of

decency, and regarded as atrocious. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) Severe emotional distress means “emotional distress of such substantial quality or enduring quality that no reasonable [person] in a civilized society should be expected to endure it,” and consists of fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment, or worry. (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1376.)

Cross-Defendant MLG argues that the Cross-Complaint fails to sufficiently plead any outrageous conduct or severe emotional distress. The Cross-Complaint alleges that although Wakily was retained in October 2024, MLJ did not seek for her to review records until about a month before trial, and a couple of weeks before her deposition. MLG then provided numerous records for her to review between December 13 and 17, 2025, before her scheduled deposition on December 20, 2025 (§§12, 16-26, 59). After Wakily submitted her invoice, MLG sent an email, which although acknowledging the numerous records sent, was surprised by the number of hours spent in the review. MLG thereafter sent an email that it wished to resolve the matter. Wakily declined to limit her recovery based on the settlement. MLG’s partner Kristy Arevalo responded that a fee dispute could be renegotiated, and offered an amount aligned with fees paid to other experts. Arevalo also disputed that Wakily spent 50 hours to review the records, and indicated she would file a motion to set reasonable expert fees. Later, she stated that she would advise members of organization CAALA of the facts of this case. MLG declined to compensate her (§§29, 32-37, 40). Wakily suffered anxiety from Arevalo’s statement that she would use her position to punish Wakily for refusing to reduce her fees (§62).

Under the allegations above, the outrageous conduct falls into two categories: (1) given documents to review in short period and (2) threats to harm Wakily’s reputation as an expert.

Document Review

Even if the Court were to accept that MLG made a demand on Wakily to review numerous records in a short period, it likely does not constitute outrageousness. In the business, expert, and attorney world demands can exist to perform huge amount of work in little time. It does not render the demand to do so as outrageous. Additionally, the Cross-Complaint makes no allegation that the high demand on Wakily to review numerous medical records in the short period caused her any emotional distress. The emotional distress allegation relates to the alleged threat by Arevalo, not from needing to review numerous records in a short period of time.

Arevalo’s Statement

The crux of the issues is Arevalo was attempting to resolve a dispute over Wakily’s claimed fees. A party does not engage in outrageous conduct by seeking to settle a dispute. (*Girard v. Ball* (1981) 125 Cal.App.3d 772, 787.) Furthermore, outrageousness does not exist on mere insults and threats. (*Hughes v. Pair, supra*, 46 Cal.4th at p. 1051.) Thus, even if the Court accepts Wakily’s interpretation that Arevalo made threats, that alone is not going to constitute outrageousness, especially when it is connected with attempts to resolve a business dispute.

Additionally, although Wakily attests that she suffered anxiety over the possibility that her reputation would be smeared by MLG, the *Wong* Court found that a professional criticism in

a Yelp review, even if unjustified or defamatory, does not constitute the sort of severe emotional distress that is lasting and enduring that no reasonable person would expect to have to endure it. (*Wong v. Jing, supra*, 189 Cal.App.4th at p. 1377.) Although a public review never occurred here as this was a private email, the same can be said, i.e., a professional providing services cannot say the potential of getting negative reviews or statements about services provided will support lasting and enduring emotional distress.

Based on the above, the Cross-Complaint would fail to sufficiently allege a predicate theory for IIED, and the Demurrer to the 2nd cross-claim would be sustained, normally with leave to amend.

However, given that the IIED is impermissible as increasing the scope of the interpleader litigation, the demurrer is sustained without leave to amend.

Dated: September 21, 2026

Judge Kory Mathewson